

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 6/12/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
5	30-2026-01545785 Luk vs. Johnson	Pending check back later
6	30-2026-01561663 FC Orange Associates LP vs. Borden	The Court has read and considered the Defendant's Motion to Compel Further Responses to Form Interrogatories (ROA 63), Motion to Compel Further Responses to Special Interrogatories (ROA 66), Motion to Compel Production/Inspection of Documents or Things (ROA 69), and the Plaintiff's Oppositions to Each of the Defendant's Motions (ROA 78, 80 & 82). The Court takes Judicial Notice of the Request to Set Case for Trial (ROA 26), filed 5/8/2026; the Demand for Jury Trial (ROA 35), filed 5/11/2026; the Substitution of Attorney (ROA 32/33), filed 5/11/2026; the Clerk's Certificate of Mailing/Electronic Service (ROA 29); the Clerk's Certificate of Mailing/Electronic Service (ROA 59); and the 5/22/2026 Minute Order. Here, the Plaintiff filed a Request to Court the Case for Court trial on 5/8/2026. On 5/11/2026, Asian Americans Advancing Justice Southern California filed a substitution of attorney for the Defendants and filed a timely demand for a jury trial. On 5/12/2026, the Court Clerk's office mistakenly set the matter for a Court Trial and failed to provide notice to

		Asian Americans Advancing Justice Southern California, sending notice only to the Defendants personally. On May 22, 2026, this Court noticed the error made by the Clerk's Office in setting the matter for a Court Trial when there was a timely demand for a jury trial, so in Chambers the Court issued the Minute Order of 5/22/2026 (ROA 58) vacating the court trial of 5/26/2026 and setting a pretrial conference for 6/12/2026 and a jury trial for 6/15/2026. On May 22, 2026, the C61 Clerk notified the attorneys of the parties via email of the 5/22/2026 Minute Order. The initial trial date for this matter is June 15, 2026. There were no continuances or postponements filed, but a clerical error in the Court Clerk's office of failing to review the Court Docket, which showed that there was a demand for a jury trial, and failing to notify the attorney of record properly. As such, the Court is ordering that the discovery request made by the Defendant's Counsel was timely. It is understandable that Plaintiff's counsel may have been confused by the error created by the first issuing of the court trial notice by the clerk's office. Considering these facts, the Court will order the Plaintiff's counsel to respond to the discovery request within 5 days. The Court will not issue sanctions against the Plaintiff. Counsel for both parties are ordered to meet and confer prior to the pretrial date. Given the amount of time for this motion and the need for discovery responses, the Court will advance and vacate the currently set pretrial and jury trial date and reset the pretrial hearing for June 26, 2026, at 8:30 AM in Department C61 and Jury Trial for June 29, 2026, at 8:30 AM in Department C61.
11	30-2026-01569971 CJS Pinemeadows Apartments, L.P. vs. Gonzales	The Court has read and considered the Defendants' Motion to Strike Complaint (ROA 32) and the Complaint (ROA 2). The Court takes Judicial Notice of the Proof of Service of Summons (ROA 8, 10 & 14). The Court DENIES the Motion to Strike Complaint. California Code of Civil Procedure §435(b)(1) requires a motion to strike to be filed within the 10 business days of service of the summons and complaint. Under California Code of Civil Procedure §1014, a motion to strike is an appearance with the court; the Defendants are precluded from filing a motion to quash service following the filing of a Motion to Strike. Furthermore, California Code of Civil Procedure §435(d) does not extend time to file a demurrer. Therefore, because it has been well past the 10 business days following service of the Summons and Complaint on May 18 & 19, 2026, the Defendants are ordered to file an Answer within 5 calendar days. Plaintiff is ordered to serve notice of the Court's ruling.
12	30-2026-01565351 Regency Palms, LP vs. Riccobono	Pending check back later
13	30-2026-01566479 Kashani vs. Hogle	As a threshold matter, Farnaz Rahimi Kashani, as Trustee of the ERK Living Trust, filed this unlawful detainer complaint in pro per. Pursuant to California